Oklahoma AI Model Policy: Data and Student Privacy Passages

Excerpted verbatim from *Model Policy: Artificial Intelligence (AI) Use in Schools (Oklahoma State Department of Education; nonbinding template)*. Page numbers refer to the PDF pages of the source file. Page numbers are PDF page numbers because the template has no printed page numbers. Ellipses (…) mark omitted text. The appendices are sample forms; the privacy lines from them are included.

I. Purpose (excerpt)

Source: page 1

This policy establishes procedures to ensure AI tools are implemented ethically, equitably, and in compliance with applicable laws and regulations, including the Family Educational Rights and Privacy Act (FERPA), the Children's Online Privacy Protection Act (COPPA), and guidance issued by the Oklahoma State Department of Education (OSDE) and Governor's Task Force on Artificial Intelligence.

II. Definitions: AI Tool Inventory

Source: page 1

AI Tool Inventory: A publicly available list of all AI tools approved for use within the district.

III. Policy Statement (excerpt)

Source: page 1

It is the policy of the [District Name] to allow the use of AI tools in district operations and classrooms under conditions that safeguard student data, protect academic integrity, and ensure equitable access to educational opportunities. … All use of AI within the district shall comply with FERPA, COPPA, Oklahoma cybersecurity standards, and OSDE AI Guidance.

V. Roles and Responsibilities (excerpt)

Source: page 2

Technology Team — Evaluates AI tools, oversees infrastructure, and ensures cybersecurity.

Parents/Guardians — Review AI-related communications, provide consent where required, and participate in district forums.

VI. Data Privacy and Security

Source: page 2

All AI tools adopted by the district must:

- Undergo a risk assessment
- Green = Low
- Yellow = Medium
- Red = High
- Provide vendor privacy documentation and breach response protocols.

- Demonstrate compliance with FERPA, COPPA, and Oklahoma cybersecurity standards.

VII. Procurement and Approval

Source: page 2

Before adoption of any AI tool, the district shall:

- Review vendor privacy and data-handling practices.
- Publish approved tools in the district's AI Tool Inventory.

VIII. Professional Development (excerpt)

Source: page 3

Technology Staff: Infrastructure, security, and vendor vetting.

IX. Community Engagement (excerpt)

Source: page 3

- Publish and maintain a public AI Tool Inventory.
- Notify parents/guardians of student AI use and provide opt-out options where applicable.

XI. Misuse & Safety Response (excerpt)

Source: page 3

The district shall maintain an anonymous reporting system for AI misuse.

XII. Implementation and Review (excerpt)

Source: page 3

The committee will update the AI Tool Inventory, audit usage data, and publish a public AI Impact Report.

XIV. Legal Authority (excerpt)

Source: page 4

- Family Educational Rights and Privacy Act (FERPA)
- Children's Online Privacy Protection Act (COPPA)
- Applicable Oklahoma cybersecurity standards

Appendix A: Oklahoma AI Policy Toolkit (excerpt)

Source: page 5

A rubric to help districts vet AI tools for instructional alignment, accessibility, safety, privacy, and sustainability.

A customizable form for notifying families about AI use and offering opt-in/opt-out options aligned with FERPA and COPPA.

Districts are encouraged to collaborate regionally, seek family input, and align AI integration with instructional goals and data privacy responsibilities.

Appendix B: AI Tool Evaluation Rubric (excerpt)

Source: page 6 [graphic]

[graphic] Data Privacy Compliance — Complies with FERPA and COPPA. No collection of PII without consent — Fully Compliant Partially Not Compliant

Appendix C: AI Tool Risk Assessment Rubric (excerpt)

Source: page 8 [graphic]

[graphic] Data Privacy & Compliance — Does the tool comply with FERPA and COPPA ? Are privacy policies transparent and verifiable?

Appendix D: Parent/Guardian Communication Letter (excerpt)

Source: page 10

We want to assure you that our approach is rooted in Oklahoma's educational standards, data privacy laws, and our deep commitment to student safety and equity.

- Comply with FERPA, COPPA, and state data privacy laws.

Students will never be required to share personal or sensitive information with AI systems. Any AI-generated content will be clearly labeled, and educators will guide all student use.

You may also opt out of specific AI-related activities for your child by contacting the school office.

Appendix E: Family FAQ (excerpt)

Source: page 12

Our goal is to use AI tools in ways that support students, protect their privacy, and prepare them for the future.

Will my child's data be safe? Yes. We follow strict laws (FERPA and COPPA) and only use tools that meet our privacy and safety standards. No personal data is shared without permission.

Can I opt out of AI tool use for my child? Yes. You can opt out by completing the AI Consent Form or contacting your child's school.

Appendix F: Parent/Guardian Consent Form (excerpt)

Source: page 13

Before your child uses any AI-based educational tools, we are requesting your informed consent.

3. Data Privacy & Protection — Your child's privacy and safety are our top priorities. Any AI tool used will comply with federal and state student data privacy laws, including FERPA, and COPPA Acts. We will not allow AI tools to collect personally identifiable information unless approved through secure channels.

You may revoke your consent at any time by contacting the school office.